

26VECV01502 26VECV01502

County: los-angeles
Division: Civil Law and Motion
Department: I
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Case Number: 26VECV01502 Hearing Date: September 22, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

JENNIFER
ANN SATZMAN,

Plaintiffs,

vs.

LA COUNTY METROPOLITAN AUTHORITY, ET AL.,

Defendants.

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CASE

NO: 26VECV01502

[TENTATIVE]

ORDER RE:

Dept.

I

HEARING

DATE: SEPTEMBER 22, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: MARCH 13, 2026

TRIAL

DATE: MAY 12, 2027

I.

BACKGROUND

Plaintiff

was being transported in an ambulance for severe injuries when the ambulance was struck by vehicles owned and operated by Defendants, including a Metropolitan Transportation Authority bus.

On March 13, 2026, Plaintiff filed a complaint against Defendants Los Angeles County Metropolitan Transportation Authority, erroneously sued as LACounty Metropolitan Transportation Authority ("LACMTA"), Marquisua Ann McQuay and Michael Linggadaja alleging (1) motor vehicle and (2) general negligence.

On

June 4, 2026, Plaintiff filed the instant motion for order for relief from claim statute. On June 18, 2026,

Defendant LACMTA filed an opposition. On

June 25, 2026, Plaintiff filed a reply.

On September 17, 2026, Plaintiff filed a Notice of Errata attaching the exhibits referenced in the motion.

II.

LEGAL

STANDARDS

"Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division." (Gov. C., § 945.4.)

"The board shall act on a claim in the manner provided in Section 912.6, 912.7, or 912.8 within 45 days after the claim has been presented. If a claim is amended, the board shall act on the amended claim within 45 days after the amended claim is presented." (Gov. C., §912.4, subd. (a).)

"Timely claim presentation is not merely a procedural requirement, but is a condition precedent to plaintiff's maintaining an action against defendant.

Only after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity."

(Lowry v. Port San Luis Harbor District (2020) 56 Cal.App.5th 211, 219 (plaintiff's action was barred due to premature filing of lawsuit before District took action on his application to file late claim).)

If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from the government claims requirement under Government Code section 945.4. (Gov. C., §946.6.) The Court shall grant the petition for relief if (1) a request to file late claim was submitted to the public entity per GC 911.4 within a reasonable time; (2) that request to file late claim was rejected per 911.6; and (3) one of the four conditions set forth in Government Code section 946.6 subdivision (c) is met:

"(1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.

(2) The person who sustained the alleged injury, damage or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim.

(3) The person who sustained the alleged injury, damage or loss was physically or mentally incapacitated during all of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time.

(4) The person who sustained the alleged injury, damage or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim." (Gov. C., §946.6, subd. (c).)

The court "must" grant the petition under section 946.6, subdivision (c)(1), if the claimant demonstrates by a preponderance of the evidence that (1) the application to the public entity under section 911.4 was made within a reasonable time not exceeding one year after the accrual of the cause of action; (2) the failure to timely present the

claim was through mistake, inadvertence, surprise, or excusable neglect; and
(3) the public entity would not be prejudiced by the granting of the petition. (Ebersol v. Cowan (1983) 35 Cal.3d 427, 431-432.)

“Section 946.6 is a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary claimant. The remedial policies underlying the statute are that wherever possible cases be heard on their merits and any doubts which may exist should be resolved in favor of the application.” (Id. at 435.)

The showing required for relief under Code of Civil Procedure section 946.6 based on mistake, inadvertence, surprise or excusable neglect is the same as required for Code of Civil Procedure section 473, subdivision (b) relief from a default judgment. (Ebersol, supra, 35 Cal.3d at 435.) “Excusable neglect is neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances.” (Id. (petitioner’s failure to file timely government claim was excusable neglect where she was unaware of the tort claim requirement and diligently sought counsel during the period which a claim had to be filed).)

As a “remedial statute,” section 946.6 is to be liberally construed so as to permit claimants with a recognized excuse to have their cases heard on the merits; i.e., doubts are to be resolved in favor of granting the section 946.6 petition. (Draper v. City of Los Angeles (1990) 52 Cal.3d 502, 507.) Where uncontradicted evidence shows adequate ground for relief, the trial court’s denial is reversible as an abuse of discretion. (Cole v. City of Los Angeles (1986) 187 Cal.App.3d 1369, 1375-1376.) By the same token, a trial court’s denial of relief will not be disturbed on appeal where there is clearly no competent evidence upon which it could exercise its discretion to grant relief. (Id.)

III.

DISCUSSION

A. Parties’ Positions

Plaintiff moves

for an order granting her relief from the claims filing requirement of Government Code section 945.6. Plaintiff's accident occurred on August 22, 2025. Plaintiff mistakenly served County of Los Angeles with a government tort claim on September 9, 2025, which County rejected on October 21, 2025. Plaintiff should have filed a government claim with LA MTA but did not do so. Plaintiff filed an application to file a late claim with LA MTA on June 5, 2026. Plaintiff filed the instant lawsuit on March 13, 2026 naming "LA County Metropolitan Transportation [sic] Authority." Plaintiff argues LA MTA will not suffer prejudice if leave to file the late claim is granted.

Defendant

opposes the motion for leave to file late claim on grounds that an attorney's mistake is not a basis for granting relief from the claim filing requirements. Defendant argues it is not affiliated or related to County of Los Angeles. Defendant argues Plaintiff was represented by counsel at all times. Defendant argues Plaintiff also knew the identity of the entity allegedly responsible for her injuries, because the September 9, 2025 claim filed with County of Los Angeles identifies "LA County Metro Driver" as the responsible department and names the Metro bus operator. Defendant argues it and County of Los Angeles are separate public entities.

Defendant

argues that the evidence submitted is also insufficient to establish excusable neglect or reasonable mistake as Plaintiff does not submit a declaration but relies solely on a conclusory declaration of counsel.

Defendant

contends Plaintiff fails to establish that her application to file late claim was presented within a "reasonable time," as required under Government Code section 911.4 subdivision (b). Though the outer limit to file an application for late claim is one year after accrual of the cause of action, Defendant argues Plaintiff was still required to establish that the application was brought within a reasonable time and to state the reason for delay in presenting the claim. Plaintiff did not file the application until June 2, 2026, more than nine months after the August 22, 2025 accident and more than seven months after the County's October 21, 2025 rejection.

Defendant

also contends that even if Plaintiff established excusable neglect, it will be prejudiced if the late claim were allowed as it will be deprived of an opportunity to investigate Plaintiff's allegations properly due to the passage of time.

In

reply, Plaintiff argues her application for late claim was timely filed within one year of the date of the accident.

Plaintiff filed the application for late claim with Defendant on June 5, 2026. Plaintiff did not discover that the

County was the wrong entity until May 27, 2026, when defense counsel raised the issue. Plaintiff filed the application

to file a late claim with LA MTA days later on June 5, 2026. Plaintiff argues the application to file a late claim was filed within a reasonable time.

Plaintiff

contends it was reasonable for counsel to mistakenly believe that the County was the responsible entity as the entities carry nearly identical names and that LA MTA's inclusion of Los Angeles County in its name is misleading. Plaintiff's counsel performed a Google search for "LACMTA claim form" and the County's claim form was the second result. Plaintiff argues any doubts regarding whether the error was reasonable or excusable should be resolved in favor of relief on the merits. Finally, Plaintiff contends

Defendant also fails to establish prejudice if the late claim were allowed.

B. Plaintiff

fails to establish that she submitted her application to file a late claim with LACMTA within a "reasonable time" per Government Code section 911.4

In order to obtain relief pursuant to

Government Code section 946.6 from the claim filing requirements of Government Code section 945.4, Plaintiff must first establish that her application to LACMTA under section 911.4 to file a late claim was made within a "reasonable time"

not exceeding one year after the accrual of the cause of action. "Where, as here, plaintiff's mistake was the actual cause of his failure to comply...his application to the board could

obviously not have been made until he discovered his mistake, and the delay

was, therefore, reasonable under the circumstances." (Moore v. State of California (1984)

157 Cal.Ap.3d 715, 725-726 ("reasonable time" inquiry under Government Code section 911.4 measured from date plaintiff discovered she had not complied with

the claims requirement when she mistakenly believed that she had complied with that requirement; plaintiff submitted application to file late claim with public entity within a “reasonable time,” three days after she discovered that timely claim she filed did not satisfy the claims requirement).)

Thus in Moore,

the court found plaintiff submitted her application to file late claim to the State Board of Control with a “reasonable time” under sections 911.4 and 946.6, even though it was submitted nearly a year after accrual of her cause of action. (Moore, supra, 157

Cal.App.3d 715, 725-726.) Any delay in

submitting the application to file late claim with the Board was due to her mistaken belief that she had complied with the claims statute. (Id.)

Plaintiff did not discover that her previous, timely-filed claim with

the Board did not satisfy the claims statute until a demurrer was sustained to her complaint. (Id.) Plaintiff submitted her application to file

late claim under section 911.4 to the Board three days after the demurrer was sustained. (Id.) When measured

from the date she discovered her erroneous belief that she had complied with the claims statute, the delay of three days was reasonable and the fact that the application for leave to file late claim was filed nearly a year after the action accrued was not grounds to deem it untimely. (Id.)

Plaintiff

represents in her reply brief that she only discovered that her claim with the County did not satisfy the claims requirement as to LACMTA on May 27, 2026. However, no evidence is presented

to establish this fact. Plaintiff’s

counsel only testifies, “[o]nce my offices was notified by LACMTA attorney that it was filed in the wrong department, I have filed an Application with the correct form to LACMTA.” (Notice of

Errata, Ex. B, Grigoryan Dec., ¶14.)

Counsel does not attest to the date on which the application to file

late claim was submitted to LACMTA. (Id.) The application is attached as Exhibit A to counsel’s declaration and is dated June 2, 2025, although Plaintiff represents

in her briefing that it was submitted on June 5, 2026. There

is no evidence of when Plaintiff discovered that the claim she submitted to the

County did not satisfy the claims requirement as to LACMTA. Without this information, the reasonableness of her June 2d or 5th, 2026 application to file late claim cannot be evaluated. The fact that the application

was filed less than a year from the accident alone is insufficient to establish that it was submitted to LACMTA within a reasonable time.

Plaintiff

fails to establish the first requirement for relief from the claims requirement under section 945.4.

B. Plaintiff

has not established that its application to file late claim filed on June 5, 2026 has been denied or deemed denied pursuant to section 911.6

Plaintiff

was required as part of her motion to establish that her application to LACMTA to file late claim under section 911.4 "was denied or deemed denied pursuant to Section 911.6." Plaintiff could not

establish this fact when the motion was filed, because she filed this motion on June 4, 2026. Plaintiff submitted her

application to file late claim to LACMTA on either June 2, 2026 or June 5, 2026. Although it has been more than 45 days since either

June 2 or June 5, 2026, Plaintiff has not submitted any evidence regarding the response to her June 2026 application to file late claim with LACMTA.

Plaintiff

fails to establish that her application to file late claim pursuant to section 911.4 has been denied by LACMTA or by operation of law under section 911.6.

C. Plaintiff

fails to submit prima facie evidence that her failure to file a timely claim with LACMTA was the result of excusable neglect or reasonable mistake of counsel

"Excusable neglect has been defined as

neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances. Cases in which relief on the basis of excusable neglect is granted generally involve plaintiffs who have diligently acted within the claims-filing limitation period (i.e., six months) to retain counsel. Generally speaking, it is the

neglectful conduct of counsel or counsel's staff, imputed to plaintiff, which is determined to be excusable and the neglectful conduct is deemed relatively

minor. In deciding whether counsel's error is excusable, the reviewing court looks to the nature of the mistake or neglect and whether counsel was otherwise diligent in investigating and pursuing the claim. When examining the mistake or neglect, the court inquires whether a reasonably prudent person might have made the same error under the same or similar circumstances." (Munoz v. State of California (1995) 33 Cal.App.4th 1767, 1782–1783 (in medical malpractice action, plaintiff's failure to file a timely claim was not excusable where only evidentiary showing of due diligence in investigating the claim were two letters requesting medical records).) "In addition, unless inexcusable neglect is clear, the policy favoring trial on the merits prevails." (Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276.)

"A petitioner or counsel for a petitioner must show more than the mere failure to discover a fact until too late; he or she must establish the failure to discover that fact in the use of reasonable diligence." (Munoz, supra, 33 Cal.App.4th at 1783.) "When there is a readily available source of information from which the potential liability of a government entity may be discovered, a failure to use that source is deemed inexcusable." (Department of Water & Power v. Superior Court (2000) 82 Cal.App.4th 1288, 1294 (Government Code section 946.6 relief denied where plaintiff and plaintiff's counsel conducted no investigation whatsoever regarding DWP's potential liability despite knowledge that DWP was working on water system and caused flooding of roadway where plaintiff's auto accident occurred).) The petitioner has the burden of proving by a preponderance of the evidence the necessary elements for relief. (Munoz, supra, 33 Cal.App.4th at 1783.)

The bar to find excusable neglect or reasonable mistake on a petition for relief from the claims filing requirement is extremely low. For example, in Flores v. Board of Supervisors (1970) 13 Cal.App.3d 480, 482-483, excusable neglect was found based on "the candid admission of appellants' attorneys that the lateness of the claim was due to their failure to open a file which in turn would have reminded them of the 100-day limitation upon the presentation of appellants' claim. (Flores, supra 13 Cal.App.3d at 483.)

In Bettencourt, counsel simply believed that the employees of Sacramento City College were employees of the state without any investigation. The Supreme Court found the mistake reasonable for several reasons. Counsel did not practice law in or near Sacramento and had never lived there. (Bettencourt, supra, 42 Cal.3d at 276). The employees were employees of Los Rios Community College District, which was in fact overseen by the state Community College of Governors. (Id.) Finally, the Supreme Court acknowledged that the “public higher education in California represents a sometimes confusing blend of state and local control and funding.” (Id.)

Here, counsel fails to meet the low bar to establish excusable neglect or reasonable mistake under section 946.6 subdivision (c)(1). Counsel Grigoryan's declaration is five paragraphs. (Notice of Errata, Ex. B.) Grigoryan testifies that he “believe[s] that Jennifer's failure to timely submit a claim to the [LACMTA] was due to mistake, inadvertence, surprise, excusable neglect.” (Id. at ¶3.) He also testifies “[t]he government form was erroneously filed with County of Los Angeles, and based on their rejection letter, it was filed in timely manner.” (Id. at ¶4.) Grigoryan's testimony fails to identify any mistake or neglect, e.g. he thought the County was the correct entity because LACMTA is named “Los Angeles County Metropolitan Transit Authority.” He merely states that he “believes” Plaintiff's claim was not timely filed due to some unidentified mistake, inadvertence, surprise or excusable neglect.” (Id. at ¶3.) Grigoryan's declaration also fails to attest to when these events occurred, including when he filed the claim with the County and when he filed the application for late claim with LACMTA.

In addition, Grigoryan's declaration fails to establish that he acted diligently in all other respects despite his alleged negligence or mistake. “In determining whether an attorney's error constitutes excusable neglect, the courts also consider the attorney's overall diligence or lack thereof in addition to examining the attorney's error.” (Bettencourt, supra, 42 Cal.3d at 278.)

Plaintiff fails to establish that she did not

present a timely claim to LACMTA as a result of counsel's excusable neglect and/or reasonable mistake. Plaintiff's motion is denied for failure to establish excusable neglect, reasonable mistake, inadvertence or surprise pursuant to section 946.6 subdivision (c)(1).

IV.

CONCLUSION

Plaintiff's

Motion for Order for Relief from Claim Statute is denied.

Moving party to give notice.

Dated: September
21, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court